

		If the proposed cross-complaint is permissive, leave of court may be granted "in the interests of justice" at any time during the course of the action. (Code Civ. Proc. § 428.50(c).) On the other hand, if the proposed cross-complaint is compulsory, leave <i>must</i> be granted so long as defendant is acting in good faith. (Code Civ. Proc. § 426.50.) Cross-complaints for equitable indemnity are virtually always transactionally related to the complaint that has been filed in the main action. (<i>Time for Living Inc. v. Guy Hatfield Homes</i> (1991) 230 Cal.App.3d 30, 38-39.) This is because "[a]n indemnity claim effectively seeks to apportion among the parties to the indemnity action the precise liability claimed by the plaintiff in the main action; therefore the indemnity claim of necessity arises out of the same occurrences or series of occurrences as asserted by the plaintiff." (<i>Id.</i> at 39.) Here, the proposed Cross-Complaint asserts causes of action for 1) equitable indemnity, 2) contribution and apportionment, 3) declaratory relief, and 4) equitable indemnity based on professional negligence.. The Complaint alleges Defendants failed to disclose certain defects and conditions such as water intrusion and dry rot when Plaintiff purchased the property in November 2020. The proposed Cross-Complaint seeks indemnity or contribution with respect to the claims in the Complaint. Thus, the Cross-Complaint is compulsory. Defendant shall file the Cross-Complaint within 7 days of this ruling. Defendant shall serve the Cross-Complaint in compliance with California Rules of Court Rule 3.110. Defendant shall give notice of this ruling.
7	Petrie vs. CMP-1, L.P.	Defendant CMP-1, LP demurs to the fourth cause of action for intentional infliction of emotional distress (IIED) in the Complaint filed by Plaintiff Shane Petrie. Defendant also moves to strike the punitive damages allegations in the Complaint. For the following reasons, the demurrer is OVERRULED and the motion to strike is GRANTED with leave to amend. Should Plaintiff wish to file a First Amended Complaint, he shall do so by October 8, 2026. In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) A demurrer is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452.